THE BENGAL, AGRA AND ASSAM CIVIL COURTS ACT, 1887

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IndiaCode

THE BENGAL, AGRA AND ASSAM CIVIL COURTS ACT, 1887

ACT NO. 12 OF 1887[1]

[11*th March*, 1887.]

An Act to consolidate and amend the law relating to Civil Courts in Bengal, the North-Western Provinces and Assam.

WHEREAS it is expedient to consolidate and amend the law relating to Civil Courts in Bengal, the North-Western Provinces and Assam; It is hereby enacted as follows:—

CHAPTER I
PRELIMINARY

1. Title, extent and commencement.—(*1*)This Act may be called the Bengal, [2][Agra] and Assam Civil Courts Act, 1887.

(*2*) It extends to the territories [3][which were on the 11th March, 1887,] respectively administered by the Lieutenant-Governor of Bengal, the Lieutenant-Governor of the North-Western Provinces and the Chief Commissioner of Assam, except such portions of those territories as for the time being are not subject to the ordinary civil jurisdiction of the High Courts [4]***; and

(*3*) It shall come into force on the first day of July, 1887.

2. **Repeal.**—[5]* * * * *

([6] *** all Courts constituted, appointments, nominations, rules and orders made, jurisdiction and powers conferred and lists published under the Bengal Civil Courts Act, 1871 (6 of 1871)[7], or any enactment thereby repealed, or purporting expressly or impliedly to have been so constituted, made, conferred and published, shall be deemed to have been respectively constituted, made, conferred and published under this Act; and

(*3*)Any enactment or document referring to the Bengal Civil Courts Act, 1871 (6 of 1871)[7], or to any enactment thereby repealed, shall be construed to refer to this Act or to the corresponding portion thereof.

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1. This Act has been declared by notification under the Scheduled Districts Act, 1874 (14 of 1874), s. 3, to be in force in the following Scheduled Districts, namely:—the districts of Hazaribagh, Ranchi, Palamau and Manbhum, and ParganasDhalbhum, the Chaibbassa Municipality, and the Porahat Estate in the district of Singhbhum in the Chota Nagpur Division. It has also been declared in force in the Angul District by the Angul Laws Regulation, 1936 (5 of 1936), s. 3 and Sch.
   It is in force in the SonthalParganas for certain purposes: *see* the SonthalParganas Justice Regulation, 1893 (5 of 1893).
   It has been extended to the Sambalpur district by the Sambalpur Civil Courts Act, 1906 (Ben. 4 of 1906); to the areas transferred to the Province of Orissa from the Madras Presidency and the Central Provinces by the Orissa Laws Regulation, 1936 (1 of 1936), s. 4; and to the District of Koraput and certain areas of the Ganjam Agency, by the Koraput and Ganjam Agency Repealing and Extension of Laws Regulation, 1951 (Orissa Regu. 5 of 1951).
   It has been amended in its application to—
   West Bengal, by Ben. Act 19 of 1935, West Ben. Acts 59 of 1950, 16 of 1957, 26 of 1969, 55 and 58 of 1978;
   Bihar and Orissa, by B. &O Act 4 of 1922;
   Agra, by U.P. Acts 5 of 1925 and 4 of 1936;
   Assam, by Assam Acts 6 of 1935, 17 of 1974 and 1 of 1979;
   Bihar, by Bihar Act 12 of 1960 and Uttar Pradesh by U.P. Acts 14 of 1970 and 57 of 1976.
2. Subs. by Act 16 of 1911, s. 2, for "North-Western Provinces".
3 Subs. by the A.O. 1937, for "for the time being".
4. The words "and except the Jhansi Division" rep. by Act 20 of 1890, s. 9.
5. Sub-section (*1*) rep. by Act 12 of 1891, s. 2 and the First Schedule.
6. The word "But" rep.s. 2 and the First Schedule, *ibid.*
7. Act 6 of 1871 was rep. by s. 2 of this Act.

CHAPTER II

CONSTITUTION OF CIVIL COURTS

3. Classes of Courts.—Thereshall be the following classes of Civil Courts under this Act, namely:—

(*1*) the Court of the District Judge;

(*2*) the Court of the Additional Judge;

(*3*) the Court of the Subordinate Judge; and

(*4*) the Court of the Munsif.

STATE AMENDMENT

Bihar

Amendment in Section-3 of the Bengal, Agra and Assam Civil Courts Act, 1887 (Act 12 of 1887).- In Bengal, Agra and Assam Civil Courts Act 1887 (Act, 12 of 1887) (herein after referred to as the said Act) in Clause-(3) of Section-3 for the words "Subordinate Judge" words and bracket "Civil Judge (Senior Division)" and in Clause (4) for the words "Munsif " the words and bracket "Civil Judge (Junior Division)" shall be substituted"

[*Vide* Bihar Act 14 of 2014, s. 2]

[1]**[4. Number of District Judges, Subordinate Judges and Munsifs.—**The State Government may alter the number of District Judges, Subordinate Judges and Munsifs now fixed.]

5.[*Number of Munsifs.*] *Rep. by the Decentralization Act,* 1914 (4 *of* 1914), s. 2 *and the Schedule, Part*I.

6.Vacancies among District or Subordinate Judges.—(*1*) Whenever the office of District Judge or Subordinate Judge is vacant by reason of the death, resignation or removal of the Judge or other cause, or whenever [2](an increase in the number of District or Subordinate Judges has been made under the provisions of section 4], the [3][State Government or, as the case may be, the High Court] may fill up the vacancy or appoint the additional District Judges or Subordinate Judges [4]***.

(*2*) Nothing in this section shall be construed to prevent a State Government from appointing a District Judge or Subordinate Judge to discharge, for such period as it thinks fit, in addition to the functions devolving on him as such District Judge or Subordinate Judge, all or any of the functions of another District Judge or Subordinate Judge, as the case may be.

Uttar Pradesh

Amendment of section 6 of Act XII of 1887.—In section 6 of the Bengal, Agra and Assam Civil Court Act, 1887, herein after in this chapter referred to as the principal Act, in sub-section (2), for the words “state Government” the words “High Court” shall be substituted.

[*Vide* Uttar Pradesh Act 17 of 1991, s. 2]

7.[*Vacancies among Munsifs.*]*Rep.by the A. O.* 1937.

8.Additional Judges.—(*1*) When the business pending before any District Judge requires the aid of Additional Judges for its speedy disposal, the State Government may, [5][having consulted] the High Court [6]***, appoint such Additional Judges as may be requisite.

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1. Subs. by 38 of 1920, s. 2 and the First Schedule, for section 4.
2. Subs. by s. 2 and the First Schedule, *ibid.*,for “the G.G. in C. has sanctioned an increase of the number of District Judges or Subordinate Judges”.
3. Subs. by the A. O. 1937, for “L. G.”.
4. The words “as the case may be”rep., *ibid.*
5. Subs., *ibid.*,for “upon the recommendation of”.
6. The words “and with the previous sanction of the G. G. in C.”rep. by Act 16 of 1911, s. 3.

(*2*)Additional Judges so appointed shall discharge any of the functions of a District Judge which the District Judge may assign to them, and, in the discharge of those functions, they shall exercise the same powers as the District Judge.

9.Administrative control of Courts.—Subject to the superintendence of the High Court, the District Judge shall have administrative control over all the Civil Courts under this Act within the local limits of his jurisdiction.

10. Temporary charge of District Court.—(*1*) In the event of the death, resignation or removal of the District Judge, or of his being incapacitated by illness or otherwise for the performance of his duties, or of his absence from the place at which his Court is held, the Additional Judge, or, if an Additional Judge is not present at that place, the senior SubordinateJudge present thereat, shall, without relinquishing his ordinary duties, assume charge of the office of the District Judge, and that continue in charge thereof until the office is resumed by the District Judge or assumed by an officer appointed thereto.

(*2*) While in charge of the office of the District Judge, the Additional Judge or Subordinate Judge, as the case may be, may, subject to any rules which the High Court may make in this behalf, exercise any of the powers of the District Judge.

11. Transfer of proceedings on vacation of office of Subordinate Judge.—(*1*) In the event of the death, resignation or removal of a Subordinate Judge, or of his being incapacitated by illness or otherwise for the performance of his duties, or of his absence from the place at which his Court is held, the District Judge may transfer all or any of the proceedings pending in the Court of the Subordinate Judge either to his own Court or to any Court under his administrative control competent to dispose of them.

(*2*) Proceedings transferred under sub-section (*1*)shall be disposed of as if they had been instituted in the Court to which they are so transferred:

(*3*) Provided that the District Judge may re-transfer to the Court of the Subordinate Judge or his successor any proceedings transferred under sub-section (*1*)to his own or any other Court.

(*4*) For the purposes of proceedings which are not pending in the Court of the Subordinate Judge on the occurrence of an event referred to in sub-section (*1*),and with respect to which that Court has exclusive jurisdiction, the District Judge may exercise all or any of the jurisdiction of that Court.

12. [*Temporary charge of office of Munsif.*]*Rep. by the A.O.* 1937.

STATE AMENDMENT

Uttar Pradesh

Amendment of Act no. 12 of 1887.— In the Bengal, Agra and Assam Civil Courts Act, 1887hereinafter referred to as the principal Act,—

(a) in Section 3, 4, 6, 10, 11, 13, 18, 21, 22, 23, 24 and 25, for the words ''Civil Judge'' and ''Civil Judges'' wherever occurring, the words ''Civil Judge (Senior Division)'' and ''CivilJudges (Senior Division)'' shall respectively be substituted;

(b) in Sections 3, 4, 13, 19, 21, 22, 23, 24 and 25, for the words ''Munsif'' an ''Munsifs'' wherever occurring, the words ''Civil **J**udge (**J**unior Division)'' and ''Civil **J**udges (**J**unior Division)'' shall respectively be substituted;

(c) for the existing marginal headings to the sections shown in Column I of the table below, the marginal headings as shown in Column II thereof shall be substituted, namely :—

Section	Marginal headings as hereby substituted
4	Number of District Judges; Civil Judges (Senior Division) and Civil **J**udges (**J**unior Division)
6	Vacancies among District or Civil Judge (SeniorDivision)

11	Transfer of proceedings on vacation of office of CivilJudge (Senior Division)
18	Extent of original jurisdiction of District or Civil Judge (Senior Division)
19	Extent of jurisdiction of Civil Judge (Junior Division)
21	Appeals from Civil Judges (Senior Division) and Civil Judges (Junior Division)
22	Power to transfer to Civil Judges (Senior Division)appeal from Civil Judges (Junior Division)
23	Exercise by Civil Judge (Senior Division) or Civil Judge (Junior division) of jurisdiction of District Court in certain proceedings.
25	Power to invest Civil Judges (Senior Division) andCivil Judges (Junior Division) with Small Cause Court Jurisdiction.

[*Vide* Uttar Pradesh Act 25 of 1995, s. 2]

Bihar

Amendment of section 12 of 1887.— In the said Act, the word "Subordinate Judge" and the word "Munsif" wherever used shall be substituted by the words and bracket "Civil Judge (Senior Division)" and "Civil Judge (Junior Division)" respectively.

[*Vide* Bihar Act 14 of 2014, s. 3]

13. Power to fix local limits of jurisdiction of Courts.—(*1*)The State Government may, by notification in the Official Gazette, fix and alter the local limits of the jurisdiction of any Civil Court under this Act.

(*2*) If the same local jurisdiction is assigned to two or more Subordinate Judges or to two or more Munsifs, the District Judge may assign to each of them such civil business cognizable by the Subordinate Judge or Munsif, as the case may be, as, subject to any General or special orders of the High Court, he thinks fit.

(*3*) When civil business arising in any local area is assigned by the District Judge under sub-section (*2*) to one of two or more Subordinate Judges, or to one of two or more Munsifs, a decree or order passed by the Subordinate Judge or Munsif shall not be invalid by reason only of the case in which it was made having arisen wholly or in part in a place beyond the local area if that place is within the local limits fixed by the State Government under sub-section (*1*).

(*4*) A Judge of a Court of Small Causes appointed to be also a Subordinate Judge or Munsif is a Subordinate Judge or Munsif, as the case may be, within the meaning of this section.

(*5*) The present local limits of the jurisdiction of every Civil Court under this Act shall be deemed to have been fixed under this section.

14. Place of sitting of Courts.—(*1*)The State Government may, by notification inthe Official Gazette, fix and alter the place or places at which any Civil Court under this Act is to be held.

(*2*)All places at which any such Courts are now held shall be deemed to have been fixed under this section.

15. Vacations of Courts.—(*1*) Subject to such orders as may be made [1]*** [2][*** by theState Government [3]***] the High Court shall prepare a list of days to be observed in each year as close holidays in the Civil Courts.

(*2*) The list shall be published in the official Gazette.

1. The words "by the G.G. in C., in the case of the High Court at Calcutta, and"rep. by the A.O. 1937.
2. Ins. by Act 38 of 1920, s. 2 and the First Schedule.
3. The words "in other cases" rep. by the A.O. 1937.

(*3*) A judicial act done by a Civil Court on a day specified in the list shall not be invalid by reason only of its having been done on that day.

16. Seals of Courts.—Every Civil Court under this Act shall use a seal of such form and dimensions as are prescribed by the State Government.

17. Continuance of proceeding of Courts ceasing to have jurisdiction.—(*1*) Where any Civil Court under this Act has from any cause ceased to have jurisdiction with respect to any case, any proceeding in relation to that case which, if that Court had not ceased to have jurisdiction, might have been had therein may be had in the Court to which the business of the former Court has been transferred.

(*2*)Nothing in this section applies to cases for which provision is made in section 623 or section 649 of the Code of Civil Procedure[1] (14 of 1882) or in any other enactment for the time being in force.

STATE AMENDMENT

Assam

Amendment of section 17.—In sub-section (2) of section 17 of the said Act, for the words and figures "in Section 623 or Section 649 of the Code of Civil Procedure" the words and figures "in sections 36, 37 and 114 of, and Rule 1 of Order XLVII in Schedule I to the Code of Civil Procedure, 1908" shall be substituted.

[*Vide* Assam Act 6 of 1935, s. 3]

Bihar

Amendment of Section 17 of Act XII of 1887.— In sub-section (2) of Section 17 of the Bengal, Agra and Assam Civil Courts Act, 1887 (XII of 1887) (hereinafter referred to as the said Act), for the words and figures "in Section 623 or Section 649 of the Code of Civil Procedure" the words and figures "in Sections 36, 37 and 114 of, and Rule 1 of Order XLVII in Schedule I to the Code of Civil Procedure, 1908" shall be substituted.

[*Vide* Bihar Act 12 of 1960, s. 2]

CHAPTER III

ORDINARY JURISDICTION

18. Extent of original jurisdiction of District or Subordinate Judge.—Saveas otherwise provided by any enactment for the time being in force, the jurisdiction of a District Judge or Subordinate Judge extends, subject to the provisions of section 15 of the Code of Civil Procedure[2] (14 of 1882), to all original suits for the time being cognizable by Civil Courts.

STATE AMENDMENT

Assam

Amendment of section 18 and 39.—In Section 18 of the Said Act, after the words "Code of Civil Procedure", the figures "1908" shall be inserted.

[*Vide* Assam Act 6 of 1935, s. 4]

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1. In Bengal and Assam, for the words and figures “in s. 623 or s. 649 of the Code of Civil Procedure” the words and figures “in ss. 36, 37 and 114 of, and rule 1 of Order XLVII in Sch. I to, the Code of Civil Procedure, 1908,” have been subs. by Bengal Act 19 of 1935 and Assam Act 6 of 1935, respectively. In Agra, Bihar and Orissa, also, the reference to the old enactment should be construed in the same way: *see* the Code of Civil Procedure, 1908 (Act 5 of 1908), s. 158.
2. In Bengal and Assam, the figures “1908,” have been ins. at this place by Bengal Act 19 of 1935 and Assam Act 6 of 1935, respectively. In Agra, Bihar and Orissa.also, the reference to the old enactment should be construed in the same way: *see* the Code of Civil Procedure, 1908 (Act 5 of 1908), s. 158.

Bihar

Amendment of Section 18 of Act XII of 1887. - In Section 18 of the said Act, after the words "Code of Civil Procedure", the figures "1908" shall be inserted.

[*Vide* Bihar Act 12 of 1960, s. 3]

[1]**19.Extent of jurisdiction of Munsif.—**(*1*) Save as aforesaid, and subject to the provisions of sub-section (*2*),the jurisdiction of a Munsif extends to all like suits of which the value does not exceed one thousand rupees.

(*2*)The State Government may, on the recommendation of the High Court, direct, by notification in the Official Gazette, with respect to any Munsif named therein, that his jurisdiction shall extend to all like suits of such value not exceeding two thousand rupeesas may be specified in the notification:

[2][Provided that the State Government may, by notification in the Official Gazette, delegate to the High Court its powers under this section.]

STATE AMENDMENT

Assam

Amendment of section 19.—In sub-section (2) of section 19 of the said Act, for the words beginning with "that his jurisdiction" and ending with "in the notification" the following shall be substituted, namely:-

"(a) that his jurisdiction shall extend to all like suits of such value not exceeding two thousand rupees as may be specified in the notification, or

(b) that so long as he holds Court at a place where the Court of a Subordinate Judge is held his jurisdiction shall extend to all like suits of such value not exceeding three thousand rupees as may be so specified."

[*Vide* Assam Act 6 of 1935, s. 5]

Amendment of section 19.—In the Principal Act, in Section 19-

(i) in sub-section (1), for the words "seven thousand rupees" , the words "fifty thousand rupees" shall be substituted.

(ii) in sub-section (2), for the words "twenty five thousand rupees" the words "two lakhs rupees" shall be substituted.

[*Vide* Assam Act 44 of 2005, s. 2]

Amendment of section 19.—In section 19 of the principal Act, --

(1) in sub-section (1), for the words "one thousand rupees" at the end the words "three thousand rupees" shall be substituted:

(2) for sub-section (2) the following shall be substituted, namely:-

"(2) The State Government may, on the recommendation of the High Court, direct, by notification in the Official Gazette with respect to any Munsif named therein that his jurisdiction shall extend to all like suits of such value not exceeding five thousand rupees as may be specified in the notification:

1. S. 19 does not apply to Honorary Munsifs and Benches, in the U. P.: *see* the U. P. Honorary Munsifs Act, 1896 (U.P. 2 of 1896), s. 13. This section has been diversely amended in Bengal, Bihar and Orissa, Agra and Assam by Ben. Act 19 of 1935, s. 5, B. &O. Act 4 of 1922, s. 2, U.P. Act 5 of 1925, ss. 2 and 3, and Assam Act 6 of 1935, s. 5, respectively.
2. Ins. by Act 4 of 1914, s. 2 and the Schedule, Part I.

Provided that the State Government may, by notification in the Official Gazette, delegate to the High Court its powers under this section."

[*Vide* Assam 9 of 1965, s. 2]

Amendment of section 19.—(1) In section 19 of the principal Act, in sub-section (1), for the words "three thousand rupees" the words "seven thousand rupees" shall be substituted.

(2) In section 19 of the principal act, in sub-section (2) for the words "ten thousand rupees" the words "twentyfive thousand rupees" shall be substituted.

[*Vide* Assam Act 7 of 1993, s. 2]

Uttarakhand

Amendment of sub-section (2) of section 19.—In sub-section (2) of section 19 of the Bengal, Agra and assam Civil Courts Act, 1887—

"(2) Words 'one lac' for the words 'twenty five thousand' shall be substituted.

[*Vide* Uttaranchal Act 20 of 2005, s. 2]

Uttar Pradesh

Amendment of section 19 of act 12 of 1887.—for section 19 of the Bengal, Agra and Assam Civil Courts Act, 1887, hereinafter in this Chapter referred to as the principal Act, the following section shall be substituted, namely:--

"19 (1) Save as aforesaid, and subject to the provisions of sub-section (2), the jurisdiction of a Munsif extends to all like suits of which the value does not exceed five thousand rupees.

(2) The State Government may, on the recommendation of the High Court, direct by notification in the official Gazette, with respect to any Munsif named therein, that his jurisdiction shall extend to all like suits of such value not exceeding ten thousand rupees as may be specified in the notification:

Provided that the State Government may, the notification in the official Gazette, delegate to the High Court its powers under this section."

[*Vide* Uttar Pradesh Act 57 of 1976, s. 27]

Amendment of section 19.—In section 19 of the principal Act,-

(a) in sub-section (1), for the words "five thousand rupees" the words "ten thousand rupees" shall be substituted;

(b) for sub-section (2), the following sub-section shall be substituted namely:-

"(2) the High Court may direct by notification in the official Gazette, with respect to any music named therein, that his Jurisdiction shall extend to all like suits of such value not exceeding twenty five thousand rupees as may be specified in the notification.

[*Vide* Uttar Pradesh Act 17 of 1991, s. 3]

Amendment of section 19 of Act no. XII of 1887.— In section 19 of the Bengal, Agra and Assam Civil Court Act, 1887 hereinafter in this Chapter referred to as the principal Act,–

(a) in sub-section (1) for the words "ten thousand rupees" the words "one lakh rupees" shall be substituted;

(b) in sub-section (2) for the words "twenty five thousand rupees" the words "five lakh rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 14 of 2015, s. 2]

Bihar

Amendment of Section 19 of Act 12 of 1887. - In Section 19 of the Bengal, Agra and Assam Civil Courts Act, 1887 (Act 12 of 1887) (hereinafter referred to as the said Act).

(i) in sub-section (1) for the words "two thousand" the words "twenty thousand" shall be *substituted*;

(ii) in sub-section (2) for the words "five thousand" the words "thirty thousand" shall be *substituted*.

[*Vide* Bihar Act 19 of 1987, s. 2]

Amendment of section 19 of the Act, 12 of 1887.— In the said Act in Section-19 the words "the Jurisdiction of Munsif extends to all like suits of which the value does not exceed Thirty thousand rupees" shall be substituted by the words, numbers and bracket "the Jurisdiction of Civil Judge (Junior Division) extends to all like suits of which the value does not exceed rupees 1,50,000/-(One lac fifty thousand rupees)".

[*Vide* Bihar Act 14 of 2014, s. 4]

Amendment of Section 19 of Act XII of 1887. - In Section 19 of the said Act,-

(i) in sub-section (1), for the words "one thousand", the words "two thousand" shall be *substituted*; and

(ii) in sub-section (2), for the words "four thousand", the words "five thousand" shall be *substituted*.

[*Vide* Bihar Act 12 of 1960, s. 5]

20. Appeals from District and Additional Judges.—(1) Save as otherwise provided by any enactment for the time being in force, an appeal from a decree or order- of a District Judge or Additional Judge shall lie to the High Court.

(*2*) An appeal shall not lie to the High Court from a decree or order of an Additional Judge in any case in which, if the decree or order had been made by the District Judge, an appeal would not lie to that Court.

21. Appeals from Subordinate Judges and Munsifs.—(*1*) Save as aforesaid, an appeal from a decree or order of a Subordinate Judge shall lie—

(*a*) to the District Judge where the value of the original suit in which or in any proceeding arising out of which the decree or order was made did not exceed five thousand rupees, and

(*b*) to the High Court in any other case.

(*2*) Save as aforesaid, an appeal from a decree or order of a Munsif shall lie to the District Judge.

(*3*) Where the function of receiving any appeals which lie to the District Judge under sub-section (*1*) or sub-section (*2*) has been assigned to an Additional Judge, the appeals may bepreferred to the Additional Judge.

(*4*) The High Court may, with the previous sanction of the State Government, direct, by notification in the Official Gazette, that appeals lying to the District Judge under sub-section (*2*) from all or any of the decrees or orders of any Munsif shall be preferred to the Court of such Subordinate Judge as may be mentioned in the notification, and the appeals shall thereupon be preferred accordingly.

STATE AMENDMENT

Assam

Amendment of section 21.—In the Principal Act, in section 21, in sub-section (1), in clause (a), for the words “fifty thousand rupees” the words “five lakh rupees” shall be substituted.

(a) to the District Judge where the value of the original suit in which or in any proceeding arising out of which, the decree or order was made, whether instituted or

commenced or decided before or after the commencement of the Uttar Pradesh Civil Laws Amendment Act, 1968, was less than twenty thousand rupees; and

(b) to the High Court, in any other case.

(I-A) An appeal from a decree or order of Civil Judge where the value of the original suit in which, or in any proceeding arising out of which, the decree or order was made exceeded ten thousand rupees but was less than twenty-thousand rupees instituted in the High Court before the date of commencement of the Uttar Pradesh Civil Laws Amendment Act, 1970, and pending in the High Court immediately before the said date, not being an appeal in which arguments have been concluded before the said date and only judgment disposing of the appeal remains to be pronounced, shall stand transferred to the District Judge having jurisdiction who may either decide it himself or assign it to any Additional Judge sub-ordinate to him.

(I-B) The period of limitation prescribed for filing an appeal from a decree or order of a Civil Judge where the value of the original suit in which, or in any proceeding arising out of which, the decree or order was made exceeded ten thousand rupees but was less than twenty thousand rupees and the decree or order was made before December 2, 1968, shall, notwithstanding anything in the Limitation Act, 1963, be deemed to be and always to have been the same as if the appeal continued to lie to the High Court.''

(b) to the High Court, in any other case.

(I-A) An appeal from a decree or order of Civil Judge where the value of the original suit in which, or in any proceeding arising out of which, the decree or order was made exceeded ten thousand rupees but was less than twenty-thousand rupees instituted in the High Court before the date of commencement of the Uttar Pradesh Civil Laws Amendment Act, 1970, and pending in the High Court immediately before the said date, not being an appeal in which arguments have been concluded before the said date and only judgment disposing of the appeal remains to be pronounced, shall stand transferred to the District Judge having jurisdiction who may either decide it himself or assign it to any Additional Judge sub-ordinate to him.

(I-B) The period of limitation prescribed for filing an appeal from a decree or order of a Civil Judge where the value of the original suit in which, or in any proceeding arising out of which, the decree or order was made exceeded ten thousand rupees but was less than twenty thousand rupees and the decree or order was made before December 2, 1968, shall, notwithstanding anything in the Limitation Act, 1963, be deemed to be and always to have been the same as if the appeal continued to lie to the High Court.''

[*Vide* Assam Act 44 of 2005, s. 3]

Amendment of section 21.—In section 21 of the principal Act, in clause (a) of sub-section (1), for the words "five thousand rupees" the words "seven thousand rupees" shall be substituted.

[*Vide* Assam Act 9 of 1965, s. 3]

Amendment of section 21.--In section 21 of the principal Act, in sub-section (1), in clause (a), for the words "twenty thousand rupees", the words "fifty thousand rupees" shall be substituted.

[*Vide* Assam Act 7 of 1993, s. 3]

Uttar Pradesh

Amendment of section 21 of Act XII of 1887.--In section 21 of the Bengal, Agra and Assam Civil Courts Act, 1887, as amended in its application to Uttar Pradesh (hereinafter referred to as the Bengal, Agra and Assam Civil Courts Act), for sub-section (1), the following sub-section shall be substituted, namely :—

"(1) Save as aforesaid, an appeal from a decree or order of a Civil Judge shall lie—

(a) to the District Judge where the value of the original suit in which or in any proceeding arising out of which, the decree or order was made, whether instituted or commenced or decided before or after the commencement of the Uttar Pradesh Civil Laws Amendment Act, 1968, was less than twenty thousand rupees; and

(b) to the High Court, in any other case.

(I-A) An appeal from a decree or order of a Civil Judge where the value of the original suit in which, or in any proceeding arising out of which, the decree or order was made exceeded ten thousand rupees but was less than twenty thousand rupees instituted in the High Court before the date of commencement of the Uttar Pradesh Civil Laws Amendment Act, 1970 and pending in the High Court immediately before the said date, not being an appeal in which arguments have been concluded before the said date and only judgement disposing of the appeal remains to be pronounced, shall stand transferred to the District Judge having jurisdiction who may either decide it himself or assign it to any Additional Judge subordinate to him.

(I-B) The period of limitation prescribed for filing an appeal from a decree or order of a Civil Judge where the value of the original suit in which, or in any proceeding arising out of which, the decree or order was made exceeded ten thousand rupees but was less than twenty thousand rupees and the decree or order was made before December 2, 1968, shall notwithstanding anything in the Limitation Act, 1963, be deemed to be and always to have been the same as if the appeal continued to lie to the High Court."

[*Vide* Uttar Pradesh Act 14 of 1970, s. 4**]**

Uttar Pradesh

Amendment of section 21.—In section 21 of the principal Act,-

(a) for sub-sections (1), (1-A) and (1-B), the following sub-sections shall be substituted, namely :–

"(1) Save as aforesaid an appeal from a decree or order of a Civil Judge shall lie,–

(*a*) to the High Court in any case other than a case referred to in clause (b) ;

(*b*) to the District Judge where the value of the original suit in which or in any proceeding arising out of which the decree or order was made (either instituted or commenced before or after the relevant date) did not exceed one lakh rupees or such higher amount not exceeding five lakh rupees as the High Court may fix from time to time by notification in the official Gazette.

Explanation—For the purposes of this sub-section and sub-section (1-A) and (1-B) relevant date means the date of commencement of the Uttar Pradesh Civil Laws (Amendment) Act, 1991 or, as the case may be, the date of commencement of notification made under clause (b) of sub-section (1).

(1-A) An appeal, from a decree or order of a Civil Judge where the value of the original suit in which, or in any proceeding arising out of which the decree or order was made was not more than amount fixed by or under clause (b) of sub-section (1) instituted in High Court and pending in the High Court immediately before the relevant date, shall stand transferred to the District judge having jurisdiction who may either decide it himself or assign it to any additional Judge subordinate to him :

Provided that any judgment, decree or order passed in such an appeal by the High Court after the relevant date shall be valid as if the High Court had withdrawn the appeal under section 24 of the Code of Civil Procedure, 1908.

(1-B) The period of limitation prescribed for filing an appeal from a decree or order of a Civil Judge made before the relevant date, which lay to the High

Court immediately before such date but lies to the District Judge under sub-section (1) shall not withstanding anything to the contrary contained in the Limitation Act, 1963, be deemed to be and always to have been the same as if the appeal continued to lieto the High Court.";

(b) in sub-section (4), the words "with the previous sanction of the State Government,' shall be omitted.

[*Vide* Uttar Pradesh Act 17 of 1991, s. 4]

Amendment of section 21.—In section 21 of the principal Act, in sub-section (1), in clause (b),–

(a) for the words "one lakh rupees" the words "five lakh rupees" shall be substituted; and

(b) for the words "five lakh rupees" the words "twenty-five lakh rupees" shall be substituted.

[*Vide* Uttar Pradesh Act 14 of 2015, s. 3]

Bihar

Amendment of Section 21 of Act XII of 1887.—In clause (a) of sub-section (1) of Section 21 of the Bengal, Agra & Assam Civil Courts Act, 1887 (XII of 1887), for the words "did not exceed five thousand rupees", the word "was less than ten thousand rupees" shall be substituted.

[*Vide* Bihar Act 1959, s. 2]

Amendment of section 21 of Act 12 of 1887.—In the Bengal, Agra and Assam Civil Courts Act, 1887 (Act 12 of 1887) clause (a) of sub-section (1) of section 21 for the words "sixty thousand" the words "two lakhs" shall be substituted.

[*Vide* Bihar Act 19 of 1996, s. 2]

Amendment in section 21 of the Act, 12 of 1887.—In the said act in Clause (a) of sub-section (1) of section-21 the words "Two lacs rupees" shall be substituted by the number, bracket and words "rupees 10,000/-(rupees Ten lacs)"

[*Vide* Bihar Act 14 of 2014, s. 5]

Amendment in section 21 of Act 12 of 1887.—In section (a) of sub-section (1) of Section 21 of the said Act of the words "ten thousand" the words "sixty thousand" shall be substituted.

[*Vide* Bihar Act 19 of 1987, s. 3]

CHAPTER IV

SPECIAL JURISDICTION

22. Power to transfer to Subordinate Judges appeals from Munsifs.—(*1*)A District Judge may transfer to any Subordinate Judge under his administrative control any appeals pending before him from the decrees or orders of Munsifs.

(*2*) The District Judge may withdraw any appeal so transferred, and either hear and dispose of it himself or transfer it to a Court under his administrative control competent to dispose of it.

(*3*) Appeals transferred under this section shall be disposed of subject to the rules applicable to like appeals when disposed of by the District Judge.

[1]23. Exercise by Subordinate Judge or Munsif of jurisdiction of district Court in certain proceedings.—(*1*) TheHigh Court may, by general or special order, authorize any Subordinate Judge or Munsif to take cognizance of, or any district Judge to transfer to a Subordinate Judge or Munsif under his administrative control, any of the proceedings next hereinafter mentioned or any class of those proceedings specified in the order.

1. S. 23 does not apply to Honorary Munsifs and Benches in the U. P.: *see* the U.P. Honorary Munsifs Act, 1896 (U.P. 2 of 1896), s. 13.

(*2*) The proceedings referred to in sub-section (*1*) are the following, namely:—

(*a*) proceedings under Bengal Regulation 5, 1799 *(to limit the Interference of the Zillah and City Courts of Dewanny Adawlut in the Execution of Wills and Administration to the Estates of persons dying intestate);*

[1]* * * * *

[2]* * * * *

(*d*) proceedings under the Indian Succession Act, 1865 (10 of 1865),[3] and the Probate and Administration Act, 1881 (5 of 1881)[4] which cannot be disposed of by District Delegates;and

(*e*)references by Collectors under section 322C of the Code of Civil Procedure (14 of 1882).[4]

(*3*) The District Judge may withdraw any such proceedings taken cognizance of by, or transferred to, a Subordinate Judge or Munsif, and may either himself dispose of them or transfer them to a Court under his administrative control competent to dispose of them.

STATE AMENDMENT

Assam

Amendment of section 23.—In sub-section (2) of section 23 of the said Act, --

(1) in clause (d) for the words and figures "the Indian Succession Act, 1865, and the Probate and Administration Act, 1881", the words and figures "the Indian Succession Act, 1925", shall be substituted; and

(2) in clause (e), for the word and figures "section 322C", the words "paragraph 5 of the Third Scheduled " shall be substituted and after the words "Code of Civil Procedure" the figure "1908" shall be added.

[*Vide* Assam Act 6 of 1935, s. 6]

STATE AMENDMENT

Bihar

Amendment of Section 23 of Act XII of 1887.— In sub-section (2) Section 23 of the said Act,—

(i) in clause (d), for the words and figures "the Indian Succession Act, 1865, and the probate and Administration Act, 1881". The words and figures "the Indian Succession Act, 1925" shall be substituted ; and

(ii) clause (e) shall be omitted.

[*Vide* Bihar Act 12 of 1960, s. 5]

[5]**24. Disposal of proceedings referred to in last foregoing section.—**(*1*) Proceedings taken cognizance of by, or transferred to, a Subordinate Judge or Munsif, as the case may be, under thelast foregoing section shall be disposed of by him subject to the rules applicable to like proceedings when disposed of by the District Judge:

Provided that an appeal from an order of the Munsif in any such proceedings shall lie to the District Judge.

1. Clause (*b*) relating to proceedings under Act 40 of 1858 or Act 9 of 1861 rep. by Act 8 of 1890, s. 2 and Sch.
2. Clause (*c*)relating to applications for certificates under Act 27 of 1860 was rep. by Act 7 of 1889.
3. *See* now the Indian Succession Act, 1925 (39 of 1925). In Bengal and Assam, this cl. has been formally amended by Ben. Act 19 of 1935 and Assani Act 6 of 1935, respectively.
4. *See* now the Code of Civil Procedure, 1908 (Act 5 of 1908), Sch. III. This cl. has been omitted in Bengal by Ben. Act 19 of 1935 and formally amended in Assam by Assam Act 6 of 1935.
5. Ss. 24 and 25 do not apply to Honorary Munsifs and Benches in the U.P.; *see* the U.P. Honorary Munsifs Act, 1896 (U.P. 2 of 1896), s. 13.

(*2*)An appeal from the order of the District Judge on the appeal from the order of a munsif under this section shall lie to the High Court if a further appeal from the order of the District Judge is allowed by the law for the time being in force.

[1] **25. Power to invest Subordinate Judges and Munsifs with Small Cause Court Jurisdiction.—**The State Government may, by notification in the Official Gazette, confer, within such local limits as it thinks fit, upon any Subordinate Judge or Munsif the jurisdiction of a Judge of a Court of Small Causes under the Provincial Small Cause Courts Act, 1887 (9 of 1887) for the trial of suits, cognizable by such Courts, up to such value not exceeding five hundred[2] rupees in the case of a Subordinate Judge or [3][two hundred and fifty[4] rupees] in the case of a Munsif as it thinks fit, and may withdraw any jurisdiction so conferred:

[4][Provided that the State Government may, by notification in the Official Gazette, delegate to the High Court its powers under this section.]

STATE AMENDMENT

Assam

Amendment of section 25.—In section 25 of the said Act, for the words "five hundred rupees", the words "seven hundred and fifty rupees" and for the words "two hundred and fifty rupees", the words "three hundred rupees" shall be substituted.

[*Vide* Assam Act 6 of 1935, s. 7]

Uttar Pradesh

Amendment of section 25.—For section 25 of the Bengal, Agra and Assam Civil Courts Act, 1887 the following section shall be substituted, namely:--

"25. The State Government may, by notification in the Gazette, confer within such local limits as it thinks fit, upon any Civil Judge or Munsif the jurisdiction of a Judge of a Court of Small Causes under the Provincial Small Causes Courts Act, 1887, for the trial of suits cognizable by such Courts, up to such value not exceeding one thousand rupees in the case of a Civil Judge or five hundred rupee in the case of a Munsif as it thinks fit, and may withdraw any jurisdiction so conferred:

Provided that the State Government may, by notification in the Gazette delegate to the High Court its powers under this section."

[*Vide* Uttar Pradesh Act 14 of 1970, s. 5]

Amendment of section 25 of Act XII of 1887--Section 25 of the Bengal, Agra and Assam Civil Courts Act, 1887, as amended in its application to Uttar Pradesh shall be re-numbered as sub-section (1) thereof, and—

(i) in sub-section (1), as so re-numbered, for the existing proviso, the following proviso shall be substituted, namely :–

''Provided that in relation to suits of the nature referred to in the proviso to sub-section (3) of section 15 of the said Act the references in this sub-section to one thousand rupees and five hundred rupees shall be construed respectively as references to five thousand rupees and one thousand rupees.'' ;

(ii) after sub-section (1) as so re-numbered, the following sub-section shall be inserted, namely :–

''(2) The State Government may by notification in the official Gazette, confer upon any District Judge or Additional District Judge he jurisdiction of a Judge of a Court of Small Causes

1. *See* now the Code of Civil Procedure, 1908 (Act 5 of 1908), Sch. III. This cl. has been omitted in Bengal by Ben. Act 19 of 1935 and formally amended in Assam by Assam Act 6 of 1935.
2. In Bengal and Assam the limits are seven hundred and fifty and three hundred, respectively: *see* Ben. Act 19 of 1935 and Assam Act 6 of 1935.
3. Subs. by Act 16 of 1911, s. 4, for "one hundred rupees".
4. Ins. by 4 of 1914, s. 2 and Sch., Pt. I.

under the Provincial Small Cause Courts Act, 1887, for the trial of all suits (irrespective of their value), by the lesser for the eviction of a lessee from a building after the determination of his lease, or for the recovery from him of rent in respect of the period of occupation thereof during the continuance of the lease or of compensation for the use and occupation thereof after such determination of lease, and may withdraw any jurisdiction so conferred.

Explanation— For the purposes of this sub-section, the expression 'building' has the same meaning as in Article (4) in the Second Schedule to the said Act.

(3) The State Government may by notification in the official Gazette delegate to the High Court its powers under this section.''

[*Vide* Uttar Pradesh Act 37 of 1972, s. 5]

Amendment of section 25.— In section 25 of the principal Act, in sub-section (1) as amended from time to time in its application to Uttar Pradesh,-

(a) for the words "one thousand rupees" and "five hundred rupees" the words "two thousand rupees" and "one thousand rupees" shall respectively be substituted;

(b) for the proviso, as substituted by the Uttar Pradesh Civil Laws Amendment Act, 1972 (U.P Act 37 of 1972), the following proviso shall be substituted, namely :-

"Provided that in relation to suits of the nature referred to in the proviso to sub-section (3) of section 15 of the said Act the reference in this sub-section to two thousand rupees and one thousand rupees shall be construed respectively as references to five thousand rupees and two thousand rupees."

[*Vide* Uttar Pradesh Act 57 of 1976, s. 28]

Amendment of section 25.—In section 25 of the principal Act,-

(a) for sub-sections (1) the following sub-sections shall be substituted, namely :–

"(1) The High Court may by notification in the official Gazette, confer within such local limits as it thinks fit, upon any Civil Judge or Munsif the jurisdiction of a Judge of a Court of Small Causes under the Provincial Small Cause Courts Act, 1887 for the trial of suits cognizable by such Courts. up to such value not exceeding five thousand rupees as it thinks fit and may withdraw any jurisdiction so conferred :

Provided that in relation to suits of the nature referred to in the proviso to sub-section (2) of section 15 of the said Act, the reference in this sub-section to five thousand rupees shall be construed as reference to twenty five thousand rupees.";

(b) in sub-section (2), for the words "State Government" the word "High Court" shall be substituted ;

(c) sub-section (3) shall be omitted

[*Vide* Uttar Pradesh Act 17 of 1991, s. 5]

Uttar Pradesh

Section 25 of the Bengal, Agra and Assam Civil Courts Act, 1887, as amended in its application to Uttar Pradesh shall be re-numbered as sub-section (1) thereof, and—

"Provided that in relation to suits of the nature referred to in the proviso to sub-section (3) of section 15 of the said Act the references in this sub-section to one thousand rupees and five hundred rupees shall be constructed respectively as references to five thousand rupees and one thousand rupees."

(ii) after sub-section (1) as so re-numbered, the following sub-section shall be inserted, namely :—

"(2) The State Government may by notification in the official Gazette confer upon any District Judge or Additional District Judge the jurisdiction of a Judge of a Court Act, 1887, for the trial of all suits (irrespective of their value), by the lessor for the eviction of a lessee from a building after the determination of his lease, or for the recovery from him of rent in respect of the period of occupation thereof during the continuance of the lease or of compensation for the use and occupation thereof after such determination of lease, and may withdraw any jurisdiction so conferred.

Explanation—For the purpose of this sub-section, the expression 'building' has the same meaning as in Article (4) in the Second Schedule to the said Act.

(3) The State Government may by notification in the official Gazette delegate to the High Court its powers under this section."

[*Vide* Uttar Pradesh Act 37 of 1972, s. 5]

Bihar

Amendment of Section 25 of Act XII of 1887. - In Section 25 of the said Act, for the words "five hundred rupees", the words "seven hundred and fifty rupees" and for the words "two hundred and fifty rupees", the words "three hundred rupees" shall be *substituted*.

[*Vide* Bihar Act 12 of 1960, s. 6]

CHAPTER V. —[*MISFEASANCE.*]*Rep. by the A. O.* 1937.

26. [*Suspension or removal of Judges by Local Government*.] *Rep., ibid*.

27. [*Suspension of Subordinate Judge by High Court.*] *Rep., ibid.*

28. [*Suspension or removal of Munsif by High Court.*] *Rep., ibid.*

29. [*Suspension of Munsif by District Judge*.] *Rep.,ibid.*

CHAPTER VI. —[*MINISTERIAL OFFICERS.*].*Rep., ibid.*

30. [*Appointment and removal of ministerial officers of District Courts*.].*Rep., ibid.*

31. [*Appointment and removal of ministerial officers of other Courts*.]*Rep., ibid*.

32. [*Appointment and removal of ministerial officers on joint establishments.*]*Rep., ibid*.

33. [*General powers of District Judge*.]*Rep., ibid*.

34. [*Transfer of ministerial officers.*]*Rep., ibid.*

35. [*Recovery of fines*.]*Rep., ibid*

CHAPTER VII

SUPPLEMENTAL PROVISIONS

36. Power to confer powers of Civil Courts on officers.—(*1*) The State Government may invest with the powers of any Civil Court under this Act, by name or in virtue of office,—

(*a*) any officer in the Chutia Nagpur, [1][Sambalpur], Jalpaiguri or Darjeeling District, or in any part of the territories administered by the Chief Commissioner of Assam except the district of Sylhet, or,

(*b*) after consultation with the High Court, any officer serving in any other part of the territories to which this Act extends and belonging to a class defined in this behalf by the State Government [2]*** .

1. Ins. by 4 of 1906, s. 6.
2. The words "with the previous sanction of the G. G. in C."rep. by Act 38 of 1920, s. 2 and the First Schedule, Part I.

(*2*) Nothing in [1][sections 4, 5, 6, 8, 10 or 11] applies to any officer so invested, but all the other provisions of this Act shall, so far as those provisions can be made applicable, apply to him as if he were a Judge of the Court with the powers of which he is invested.

(*3*) Where, in the territories mentioned in clause (*a*) of sub-section (*1*),the same local jurisdiction is assigned to two or more officers invested with the powers of a Munsif, the officer invested with the powers of a District Judge may, with the previous sanction of the State Government, delegate his functions under sub-section (*2*) of section 13 to an officer invested with the powers of a Subordinate Judge or to one of the officers invested with the powers of a Munsif.

(*4*) Where the place at which the Court of an officer invested with powers under sub-section (*1*) isto be held has not been fixed under section 14, the Court may be held at any place within the local limits of its jurisdiction.

STATE AMENDMENT

Assam

Amendment of section 36.—In section 36 of the principal Act, in clause (a) of sub-section (1), for the words "territories administered by the Chief Commissioner of Assam except the district of Sylhet" occurring between the words "the" and "or" the words "State of Assam" shall be substituted.

[*Vide* Assam Act 9 of 1965, s. 4]

[2]**37. Certain decisions to be according to Native law.—**(*1*) Where in any suit or other proceeding it is necessary for a Civil Court to decide any question regarding succession, inheritance, marriage or caste, or any religious usage or institution, the Muhammadan law in cases where the parties are Muhammadans, and the Hindu law in cases where the parties arc Hindus, shall form the rule of decision except in so far as such law has, by legislative enactment, been altered or abolished.

(*2*)In cases not provided for sub-section (*1*)or by any other law for the time being in force, the Court shall act according to justice, equity and good conscience.

38. Judges not to try suits in which they are interested.—(*1*) The presiding officer of a Civil Court shall not try any spit or other proceeding to which he is a party or in which he is personally interested.

(*2*) The presiding officer of an appellate Civil Court under this Act shall not try an appeal against a decree or order passed by himself in another capacity.

(*3*) When any such suit, proceeding or appeal as is referred to in sub-section (*1*)or sub-section (*2*) comes before any such officer, the officer shall forthwith transmit the record of the case to the Court to which he is immediately subordinate, with a report of the circumstances attending the reference.

(*4*) The superior Court shall thereupon dispose of the case under section 25 of the Code of Civil Procedure (14 of 1882)[3].

(*5*) Nothing in this section shall be deemed to affect the extraordinary original civil jurisdiction of the High Court.

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1. Subs. by the A.O. 1937, for "sections 4 to 8 (both inclusive), or sections 10 to 12 (both inclusive), or sections 27 to 35 (both inclusive)".
2. The provisions of this section, in so far as they are inconsistent with- the provisions of the Muslim Personal Law *(Shariat)* Application Act, 1937 (26 of 1937), rep. by s. 6 of that Act, but have been revived by s. 3 of Act 16 of 1943.
3. *See* now s. 24 of the Code of Civil Procedure, 1908 (Act 5 of 1908). In Bengal and Assam, that reference has been formally subs. by Ben. Act 19 of 1935 and Assam Act 6 of 1935 respectively.

STATE AMENDMENT

Assam

Amendment of section 38.—In sub-section (4) of section 38 of the said Act, for the words and figures "section 25 of the Code of Civil Procedure", the words and figures "section 24 of the Code of Civil Procedure, 1908" shall be substituted.

[*Vide* Assam Act 6 of 1935, s. 8]

Bihar

Amendment of Section 38 of Act XII of 1887. - In sub-section (4) of Section 38 of the said Act, for the words and figures "Section 25 of the Code of Civil Procedure", the words and figures "Section 24 of the Code of Civil Procedure, 1908" shall be *substituted*.

[*Vide* Bihar Act 12 of 1960, s. 7]

39. Subordination of Courts to District Court.—For the purposes of the last foregoing section the presiding officer of a Court subject to the administrative control of the District Judge shall be deemed to be immediately subordinate to the Court of the District Judge, and, for the purposes of the Code of Civil Procedure (14 of 1882), the Court of such an officer shall be deemed to be of a grade inferior to that of the Court of the District Judge.

STATE AMENDMENT

Assam

In Section 39 of the Said Act, after the words "Code of Civil Procedure", the figures "1908" shall be inserted.

[*Vide* Assam Act 6 of 1935, s. 4]

Bihar

Amendment of Section 39 of Act XII of 1887. - In Section 39 of the said Act, after the words "Code of Civil Procedure", the figures "1908" shall be inserted.

[*Vide* Bihar Act 12 of 1960, s. 8]

40. Application of Act to State Courts of Small Causes.—(*1*) This section and sections 15, 32, 37, 38 and 39 apply to Courts of Small Causes constituted under the Provincial Small Cause Courts Act, 1887 (9 of 1887).

(*2*) Save as provided by that Act, the other sections of this Act do not apply to those Courts.